

"Human Dignity Should Not Be a Crime."

ENSURING EQUALITY

The Necessity of Nigerian Legal
Protections for Bisexuals

Identity · Law · Dignity · Safety



INNOCENTIA CHINAGOROM UBANI
2026 EDITION

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The Necessity of Nigerian Legal
Protections for Bisexuals

*A study of identity, social challenges, law, safety,
health care, and human dignity in Nigeria*

INNOCENTIA CHINAGOROM UBANI

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This publication is an advocacy, educational, and personal work. It is not legal advice, medical advice, or a substitute for advice from a qualified Nigerian lawyer or health professional. Laws, court decisions, and public policy may change; readers should verify the current legal position before relying on this book for a legal or professional decision.

DEDICATION & ACKNOWLEDGMENTS

This book is dedicated to people whose identities, relationships, and personal histories are often discussed by others before they are heard themselves.

Special thanks to Egombute, whose support helped sustain the idea behind this publication and who stood by the author despite the security concerns associated with publishing a book on a highly contested subject in Nigeria.

AUTHOR'S NOTE

This book examines bisexuality, sexual diversity, social stigma, access to health care, policing, and the legal environment affecting sexual minorities in Nigeria. It combines the author's perspective with publicly available legal materials and research.

The author's argument is that criminal law and social stigma can have consequences beyond the conduct a statute expressly prohibits. The book therefore asks readers to consider how law, culture, family expectations, public morality, policing, and access to essential services interact in the lives of people who experience same-sex attraction or identify as bisexual.

The text has been substantially edited for clarity and accuracy. Where the original manuscript made broad claims that could not safely be presented as established fact, the language has been qualified or reframed. In particular, historical institutions such as female-husband marriage in parts of Igbo society are not treated as proof that historical communities used the modern identity category "bisexual"; they are discussed as evidence of the diversity of social and family arrangements.

The legal discussion is current to the research date of September 2026 based on the sources listed in the references. The book should not be read as a claim that every reported abuse occurs everywhere in Nigeria or that every law operates identically in every state.

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CHAPTER 1

EXPLORING BISEXUALITY AND SEXUAL DIVERSITY ACROSS AFRICA

Contemporary Biopolitics and Social Dynamics

Bisexuality is commonly understood as a sexual orientation involving the capacity for attraction to more than one gender. It is distinct from heterosexuality, homosexuality, and other monosexual orientations, which describe attraction primarily or exclusively toward one gender. Sexual orientation should also be distinguished from sexual behaviour: a person's relationships or marriage history do not, by themselves, establish or disprove a particular orientation.

In contemporary Nigeria, sexual identity is shaped by family expectations, religion, customary norms, economic dependence, gender roles, and law. Bisexual people may therefore experience pressures that are not captured by a simple division between heterosexual and homosexual life. Some may enter heterosexual marriages while continuing to experience attraction to more than one gender; others may avoid disclosure because of family rejection, employment concerns, safety risks, or fear of legal consequences.

The central concern of this chapter is not to claim that every Nigerian has the same experience. Rather, it is to make visible a group whose experiences can become particularly difficult to recognize when public discussion treats sexuality as a binary choice.

Historical Context and Igbo Social Institutions

The history of sexuality in Africa cannot be reduced to a single model. Pre-colonial societies contained diverse forms of kinship, inheritance, gendered authority, marriage, and social identity. In parts of Igbo society, anthropological literature describes institutions sometimes referred to in English as "female husband" arrangements. In such arrangements, a woman could occupy a socially recognized husband role, marry another woman, pay bridewealth, and establish a household or lineage relationship.

These institutions are historically important, but caution is necessary. A female-husband institution should not automatically be equated with modern bisexuality, lesbian identity, or any contemporary Western category of sexual orientation. The social meaning of marriage, gender, lineage, and sexuality in a pre-colonial community was not identical to today's identity categories.

The historical point is therefore narrower: African societies have never been culturally uniform, and gender and family arrangements have sometimes been more complex than a simple modern assumption that every society has always organized intimacy in exactly the same way.

Sexuality, Morality, and Cultural Norms in Modern Nigeria

Nigeria is a heterogeneous country in which customary, religious, and statutory systems interact. Marriage practices include monogamous and polygamous arrangements, while ideas about masculinity, femininity, modesty, family responsibility, and social reputation vary across communities.

Public debates about sexuality are also political and cultural. Supporters of restrictive laws often frame them through family, religion, morality, or national sovereignty. Critics argue that criminalization can contribute to stigma, concealment, violence, and barriers to health care. These are competing normative positions and should be distinguished from the factual question of what the law currently provides.

This book advocates a society in which disagreement about sexuality does not require humiliation, violence, extortion, or denial of basic human dignity. That aspiration is presented as the author's position rather than as an established

CHAPTER 1 (continued)

legal fact.

CHAPTER 2

NIGERIAN LAWS REGARDING LGBTQ+ RIGHTS

The Criminal Code Framework

Nigeria's secular criminal law contains provisions that criminalize certain same-sex sexual acts. Section 214 of the Criminal Code provides for a maximum sentence of fourteen years for specified conduct described in the statute as "carnal knowledge ... against the order of nature." Section 217 provides a maximum sentence of three years for specified acts of "gross indecency" between male persons. These provisions have colonial-era origins.

It is important to distinguish these provisions from a law that simply criminalizes the identity of being bisexual. Nigerian law does not contain a straightforward offence titled "being bisexual." The legal risks arise from particular conduct, relationships, public expression, organizational activity, and other provisions that can affect people perceived to be LGBTQ+.

The Same Sex Marriage (Prohibition) Act 2013

The Same Sex Marriage (Prohibition) Act 2013, which commenced in January 2014, prohibits same-sex marriage and civil unions and states that only a marriage between a man and a woman is recognized as valid under the Act. Section 5 provides a fourteen-year maximum sentence for entering a same-sex marriage contract or civil union. It also provides a ten-year maximum sentence for registering, operating, or participating in specified gay clubs, societies, or organizations, and for specified public displays of same-sex amorous relationships.

The Act is therefore broader than the title alone might suggest. It reaches marriage and civil unions, certain organizations and meetings, and specified public displays. It does not use "bisexuality" as the central legal category. Nevertheless, because bisexual people may have same-sex relationships or participate in LGBT-related organizations, the law can be relevant to bisexual Nigerians depending on their conduct and circumstances.

Constitutional Rights and the Legal Debate

Chapter IV of the Constitution protects fundamental rights including life, dignity of the human person, personal liberty, fair hearing, private and family life, freedom of expression, peaceful assembly and association, and freedom from discrimination on specified grounds. Section 42 prohibits discrimination on grounds including ethnic group, place of origin, sex, religion, and political opinion; it does not expressly list sexual orientation.

This creates an important legal debate. The Constitution recognizes broad fundamental rights, while specific legislation restricts certain same-sex conduct and associations. Whether and to what extent particular restrictions are constitutionally compatible is a matter for courts, lawyers, legislators, and scholars. Human Rights Watch and other rights organizations have argued that aspects of the SSMPA conflict with constitutional and regional human-rights protections. That is an attributed legal argument, not a judicial conclusion adopted by this book.

Nigeria is also party to regional and international human-rights instruments. The existence of those obligations does not by itself mean that every disputed domestic rule is automatically invalid; the relationship between domestic law, treaties, constitutional provisions, and judicial interpretation is legally complex.

Sharia and State-Level Contexts

In several northern states, Islamic criminal law operates alongside federal and state legislation. Current country-of-origin reporting states that same-sex sexual acts are criminalized under Sharia-based provisions in the twelve northern states that apply Sharia criminal law, with very severe maximum penalties reported for certain offences.

CHAPTER 2 (continued)

The legal position is therefore not identical across the federation. A careful discussion must distinguish federal secular criminal law from state-level laws and Sharia-based provisions. This is especially important when discussing maximum penalties: a maximum penalty in a statute or legal system is not the same thing as evidence that every person accused of an offence receives that penalty.

The broader lesson is that legal risk varies according to location, conduct, and applicable law.

CHAPTER 3

THE DOUBLE BURDEN OF BISEXUAL INVISIBILITY AND GENDER DYNAMICS

The Problem of Invisibility

Bisexual people can experience a distinctive form of invisibility. A person may be perceived as heterosexual because of an opposite-sex marriage or relationship, while their bisexual identity remains undisclosed. Conversely, a same-sex relationship may lead others to label the person as gay or lesbian while overlooking bisexuality.

This invisibility can have practical consequences. A person may feel pressure to maintain a socially acceptable public identity while privately negotiating questions of attraction, relationships, family expectations, and personal safety. The result can be a fragmented social experience in which disclosure is carefully managed rather than freely chosen.

Family, Marriage, and Social Expectations

In many Nigerian communities, marriage is not treated solely as a private relationship between two adults. It can involve family expectations, lineage, religion, social status, children, and economic considerations. Bisexual people can therefore face pressure to enter heterosexual marriages regardless of their internal experience of attraction.

For some people, heterosexual marriage may appear to offer social protection or reduce suspicion. But this can create another ethical and emotional question: how can partners make informed decisions when a person's sexual orientation has been concealed because disclosure feels unsafe? There is no single answer, and the experiences of bisexual people and their partners vary considerably.

A more constructive social approach is one that allows adults to make informed decisions about relationships without coercion, threats, or violence.

Gender Dynamics and Intersectionality

Sexual orientation does not exist in isolation. Gender, age, class, religion, disability, location, family status, and economic dependence can shape the consequences of stigma. A bisexual woman may encounter gendered expectations concerning marriage and sexuality, while a bisexual man may face different expectations concerning masculinity and same-sex attraction.

Research on sexual minorities in Nigeria has documented social marginalization, family rejection, harassment, and violence among gay, bisexual, and other men who have sex with men. Such evidence should not be generalized mechanically to every bisexual Nigerian, but it demonstrates that sexual-minority experiences can intersect with broader social vulnerabilities.

CHAPTER 4

POLICE MISCONDUCT, EXTORTION, AND ABUSE OF POWER

Fear and Law Enforcement

The criminalization of same-sex conduct creates a difficult environment for people who may fear being identified, reported, arrested, or extorted. Human Rights Watch's research in Nigeria documented allegations from LGBT people of arbitrary detention, extortion, humiliation, physical violence, and other abuses by police and members of the public. More recent reporting continues to document incidents affecting LGBT+ people. Human Rights Watch's World Report 2026 cited a report by The Initiative for Equal Rights documenting 556 incidents affecting 850 LGBT+ individuals across 29 Nigerian states, including assaults, blackmail, extortion, and "kito" attacks.

These figures concern LGBT+ people collectively and should not be presented as a measurement of bisexual Nigerians alone. They nevertheless provide important context for the security concerns described in this book.

Kito and Digital Entrapment

Digital platforms can create opportunities for connection while also creating security risks. In Nigeria, the term "kito" is commonly used in discussions of scams or entrapment in which a person may be lured through online contact and subsequently threatened, assaulted, exposed, or extorted because of perceived or actual sexual orientation.

The existence of such risks means that personal safety should be treated seriously. Readers should avoid sharing sensitive identifying information with unknown contacts, should preserve evidence of threats where safe to do so, and should seek trusted legal or community assistance after an incident. No victim of blackmail or violence should be regarded as responsible for the crime committed against them.

Due Process and Accountability

A criminal allegation does not remove a person's constitutional rights. The Constitution protects dignity, personal liberty, fair hearing, and other rights. Where a person alleges unlawful arrest, torture, extortion, or other misconduct, the legal question should be investigated through appropriate mechanisms rather than resolved through public humiliation or mob action.

This chapter therefore distinguishes two issues: enforcement of laws that remain in force, and unlawful conduct by officials or private actors. Even where conduct is criminalized, enforcement is still expected to operate within the law.

CHAPTER 5

INEQUITABLE ACCESS TO MEDICAL CARE

Health Care and Fear of Disclosure

Fear of stigma can affect whether people seek medical care and whether they feel safe disclosing information relevant to treatment. Research conducted in Nigeria has identified barriers to culturally and clinically appropriate health services for LGBT people. A doctoral study at the University of Birmingham, based partly on Nigerian research, identified criminalization, stigma, and provider attitudes among factors affecting access to health care.

A study of 4,000 university undergraduates in Lagos also found substantial negative attitudes toward providing health services to men who have sex with men, including support among some respondents for denying certain services. These findings concern attitudes and specific populations; they should not be interpreted as evidence that all Nigerian health workers discriminate against LGBT people.

Bisexual Women and Sexual-Reproductive Health

Research specifically addressing sexual-minority women in Nigeria is comparatively limited, but there is evidence of barriers. A qualitative study in Port Harcourt involving lesbians, bisexual women, and sex workers reported barriers including limited information about available services, prejudice from health-care providers, and lack of social acceptance.

This local evidence is particularly relevant because it shows why broad national statements should be supplemented by community-level research. Experiences can differ substantially between cities, facilities, providers, and individuals.

Mental Health and Minority Stress

Stigma, rejection, concealment, violence, and social isolation can contribute to psychological distress. Research involving gay, bisexual, and other men who have sex with men in Lagos found experiences of family rejection, harassment, physical violence, social isolation, and mental-health problems associated with sexual-minority stress.

The appropriate conclusion is not that bisexuality itself causes mental illness. Rather, social conditions surrounding identity can become important stressors. This distinction matters because it places attention on the social environment rather than treating sexual orientation as a pathology.

A Public-Health Approach

Health systems benefit when patients can seek care without fear of humiliation or unlawful disclosure. Nigeria's HIV and AIDS (Anti-Discrimination) Act 2014 provides protections concerning discrimination based on actual or perceived HIV status. The Act does not create a general sexual-orientation anti-discrimination law, but it is an important part of the broader health-rights framework.

The practical objective should be competent, confidential, respectful medical care for every patient, while recognizing the legal and social context in which health professionals operate.

CHAPTER 6

LEGAL HURDLES AND STATE DUTIES

The Case for Legal Reform

This book argues for legal reform and decriminalization of consensual same-sex conduct and related restrictions. That is the author's advocacy position. The argument rests on a distinction between public disagreement about sexuality and the use of criminal sanctions, violence, or degrading treatment.

The current legal framework does not expressly protect sexual orientation as a prohibited ground of discrimination under section 42 of the Constitution. At the same time, Chapter IV protects dignity, privacy, liberty, expression, and association. The resulting tension has generated continuing scholarly and human-rights debate.

Nigeria's Regional and International Commitments

Nigeria has ratified a range of international and regional human-rights instruments, including the African Charter on Human and Peoples' Rights and the International Covenant on Civil and Political Rights. Recent EUAA reporting also notes Nigeria's ratification of several core international human-rights treaties.

The existence of these commitments provides an important framework for discussion, but international obligations can operate through complex constitutional and legislative mechanisms. A serious legal reform debate should therefore engage with the exact text of treaties, domestic implementing legislation, constitutional provisions, and judicial decisions rather than relying only on political slogans.

What Reform Could Mean

Possible reform proposals include reviewing criminal provisions concerning consensual same-sex conduct between adults; clarifying protections against torture, arbitrary detention, extortion, and violence; strengthening confidentiality in health services; improving police accountability; and developing evidence-based public education.

Different Nigerians will disagree about the scope and pace of reform. The purpose of this chapter is to document the author's position and identify concrete areas for legal and institutional debate, not to suggest that political disagreement has disappeared.

A Call to Institutions

The Senate, House of Representatives, state legislatures, courts, law-enforcement agencies, professional bodies, health institutions, civil-society organizations, and communities all have different roles in the legal and social environment. A durable public conversation requires evidence, due process, respect for human dignity, and an acknowledgement that people can disagree profoundly about morality while still opposing torture, unlawful detention, extortion, and mob violence.

CHAPTER 7

EVALUATING SYSTEMS AND POLICIES

Living Between Visibility and Safety

For some bisexual Nigerians, heterosexual relationships or marriage can provide a degree of social invisibility. That does not mean the person is free from difficulty. It may instead create a situation in which safety depends upon remaining undisclosed.

This is one of the paradoxes explored in this book: invisibility can sometimes reduce immediate exposure while simultaneously making it harder for people to speak openly about their experiences, seek support, or build community.

Policy, Youth, and Social Change

Social attitudes are not static. Young people encounter competing messages from families, religious institutions, schools, social media, international culture, and local communities. Some messages emphasize traditional morality; others emphasize personal autonomy and equality.

The effect of social change should be studied rather than assumed. Surveys, interviews, court records, health data, and documented human-rights incidents can help determine how attitudes and experiences are changing over time.

The Limits of Legal Reform Alone

Changing a statute would not automatically eliminate stigma. Families, employers, landlords, health-care providers, police officers, religious communities, and online networks also shape people's daily experiences.

For that reason, the author's proposed transformation is broader than legal reform. It includes education, professional training, confidential health services, accountability for violence and extortion, and a culture in which disagreement does not become a justification for abuse.

Conclusion: Toward Dignity and Evidence

The story of bisexuality in Nigeria is not a single story. It contains questions of identity, family, faith, law, safety, health, history, and citizenship.

This book has argued that bisexual people should be visible in conversations about sexual-minority rights without being reduced to a footnote within broader LGBT discussions. It has also argued that legal analysis should distinguish identity from conduct, federal law from state and Sharia frameworks, documented incidents from anecdotal reports, and advocacy positions from settled legal conclusions.

The author's call is ultimately for a society in which human dignity, lawful process, evidence, and peaceful disagreement can coexist. Whether readers agree with the proposed reforms or not, the experiences documented here deserve serious examination.

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ABOUT THIS BOOK

In a legal landscape where identity, intimacy, and human dignity intersect with criminal statutes, social stigma, and state power, this book examines the lived realities of bisexual people in Nigeria. It maps the Criminal Code, the Same Sex Marriage (Prohibition) Act 2013, constitutional rights, policing practices, and barriers to health care, arguing that equality and lawful process must remain non-negotiable.

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Nigerian writer and advocate whose work focuses on identity, human dignity, and the practical consequences of law and social stigma. This edition brings together legal analysis, research, and a call for evidence-based reform that protects the rights and safety of all citizens.

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